

25STCP00038 25STCP00038

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-06-24

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Case Number: 25STCP00038 Hearing Date: June 24, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: June 24, 2026

CASE NUMBER: 25STCP00038 [LEAD] [Related

Case 25VECV02593]

CASE NAME: Karen Shainsky v.

Farmers Insurance Exchange; and related cross-actions

MOVING PARTY: Cross-Defendant Farmers

Insurance Exchange

OPPOSING PARTY: Cross-Complainant Karen Shainsky

PROCEEDING: MOTION FOR STAY OF PROCEEDINGS

RULING

SUMMARY: Farmers Insurance

Exchange's Motion for Stay of Proceedings is denied. The Court sets the case for a Case Management

Conference on _____, 2026, at 8:30AM, in Dept. 413.

Background

On January 3, 2025, Karen Shainsky ("Shainsky") filed a petition to confirm arbitration award against Farmers Insurance Exchange ("Farmers") under lead case number 25STCP00038, and on March 18, 2025, the Court confirmed the award acknowledging that the award did not address coverage issues and that

any issues could be resolved in a subsequent lawsuit.

On May 9, 2025, Farmers filed a Complaint under case number 25VECV02593 against Shainsky for declaratory relief seeking a judicial declaration of rights, duties and obligations under the Policy (“Declaratory Relief Action”). Shainsky filed a Cross-Complaint for breach of contract, breach of the implied covenant of good faith and fair dealing, and unfair business practices (“Breach Cross-Complaint”) against Farmers.

On January 28, 2026, the cases were ordered related.

On February 26, 2026, Farmers filed a motion seeking an order staying the proceedings of Shainsky’s Cross-Complaint pending the outcome of the Declaratory Relief Action.

REQUEST FOR JUDICIAL NOTICE

Shainsky asks the Court to take judicial notice of (1) Farmer’s Complaint for Declaratory Relief filed on May 9, 2025, in case no. 25VECV02593; (2) Shainsky’s Cross-Complaint filed on October 6, 2025, in case no. 25VECV02593; and (3) Court Order dated January 28, 2026 consolidating cases numbered 25STCP00038 and 25VECV02593 and making 25STCP00038 the lead case.

The request is granted. (Evid. Code § 452(d), (h); see *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23,37.) The Court takes judicial notice of these documents only as to “the existence, content and authenticity of public records and other specified documents”; it does not take judicial notice of the truth of any factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400.)

I. Legal Standard

Code of Civil Procedure section 128 empowers the Court “to enforce order in the proceedings before it” and “to own and control its process and orders so as to make them conform to law and justice.” (Code Civ. Proc. § 128(a)). “[A] court ordinarily has inherent power, in its discretion, to stay proceedings

when such a stay will accommodate the ends of justice [T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.” (OTO, L.L.C. v. Kho (2019) 8 Cal. 5th 111, 141) (citing People v. Bell (1984) 159 Cal.App.3d 323, 329; Landis v. North American Co. (1936) 299 U.S. 248, 254).)

“Where the rights of the parties to the second action cannot be properly determined until the questions raised in the first action are settled the second action should be stayed.” (See, e.g., Thriftmart, Inc. v. Superior Court of L.A. Cty. (1962) 202 Cal. App. 2d 421, 425)(citing Simmons v. Superior Court (1950) 96 Cal.App.2d 119, 130.)

II. Discussion

As Farmers argues, the Court has discretion to stay a case until another case is adjudicated, where the outcome of the case that a party seeks to stay depends on the outcome of the other case. But that is not the situation here. Farmers filed its action for declaratory relief, and, in the same action, Shainsky filed her cross-complaint alleging, among other claims, breach of contract and breach of the implied covenant of good faith and fair dealing. Both the main action and the cross-complaint involve issues regarding the parties' respective rights and obligations under the applicable insurance policy. Therefore, it would not be appropriate to require Shainsky to wait to pursue the cross-complaint until the Declaratory Relief Action is adjudicated.

The Court acknowledges Farmers' concerns about litigating both at the same time, but, as Shainsky acknowledges, the Court can address those concerns through case management, including staging of discovery if appropriate. Farmers (as well as Shainsky) have the right to seek such orders from the Court. And it would behoove counsel for the parties to meet and confer regarding discovery matters before a Case Management Conference is held, so that the case may be litigated as efficiently as possible for their clients.

Conclusion

For the reasons explained above, Farmers Insurance Exchange's

Motion for Stay of Proceedings is denied. The Court sets the case for a Case Management Conference on _____, 2026, at 8:30AM, in Dept. 413.

Date: June
24, 2026

William E. Weinberger

Judge, Los Angeles Superior Court